



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 11 judgments on Tuesday 27 August 2019 and two judgments and / or decisions on Thursday 29 August 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 27 August 2019

[Portanier v. Malta \(application no. 55747/16\)](#)

The applicant, Victor Portanier, is a Maltese national who was born in 1931 and lives in Swieqi (Malta).

The case concerns his complaint about the redress given domestically for a violation of his property rights, in particular in so far as the domestic court awarded a low level of compensation and failed to order the eviction of tenants, opting instead to order that the tenants could no longer rely on the relevant law to maintain title to the property.

Mr Portanier has an apartment in the town of Sliema which he rented to a couple from 1974 under a long-term contract (a sub-emphyteusis contract), which was extended in 1991. In 2008 the couple, relying on section 12 of Act XXIII of 1979 amending Chapter 158 of the Laws of Malta, the Housing (Decontrol) Ordinance, converted the contract into a lease with an annual rent of 1,186.46 euros.

Mr Portanier and his wife began constitutional redress proceedings, arguing that the law which allowed such contracts to be converted had imposed a lease on them for an indefinite period of time at an unfair rent, in breach of Article 1 (protection of property) of Protocol No. 1 to the European Convention on Human Rights, among other provisions.

In October 2016 the Civil Court (First Hall) in its constitutional competence rejected the claims, stating that the Portaniers had known about the 1979 amendments when extending the contract in 1991 and could not therefore complain about legal effects which had been foreseeable at the time.

Mr Portanier appealed, relying on the Court's judgment in *Zammit and Attard Cassar v. Malta*. In April 2016 the Constitutional Court reversed the first-instance judgment and found a breach of Article 1 of Protocol No. 1. It held in particular that in 1991 Mr Portanier had only had the choice of extending the contract or transforming it into a lease with less favourable conditions. The Constitutional Court awarded him EUR 2,500 for pecuniary and non-pecuniary damage. It did not order the tenants' eviction but said they could no longer rely on the impugned law to claim title to the apartment. Mr Portanier used separate eviction proceedings to take possession of the apartment in September 2017.

Mr Portanier complains that that he is still a victim of the violation of Article 1 of Protocol No. 1 which was found by the Constitutional Court owing to the low amount of compensation he was awarded and relying on Article 13 (right to an effective remedy) of the Convention in conjunction with Article 1 of Protocol No. 1, he complains that the constitutional redress proceedings were not an effective remedy.

[Izmestyev v. Russia \(no. 74141/10\)](#)

The applicant, Igor Izmestyev, is a Russian national who was born in 1966. He is detained in Solikamsk (Perm region, Russia).

The case concerns criminal proceedings which led to Mr Izmestyev being sentenced to life imprisonment for several serious criminal offences. Mr Izmestyev's complaints concern, in particular, the security cameras which operated in his cell 24 hours a day, restrictions on family visits, the length of his pre-trial detention, his conditions of detention and the fact that the proceedings were held behind closed doors.

In 2007 Mr Izmestyev was suspected of involvement as a member of an organised criminal group in a murder committed in 2001. He was arrested and placed in pre-trial detention. Subsequently further charges were brought against him. He was charged with several offences committed between 1994 and 2006, including the setting up and running of a criminal gang, seven murders and acts of terrorism and attempted bribery. The domestic courts extended his pre-trial detention many times during the proceedings, justifying their decisions, in particular, by the seriousness of the charges against him and the risk that as a former senator he might pervert the course of justice by exerting pressure on witnesses or other participants in the criminal proceedings.

In 2009, after the preliminary hearing, the court decided to hold the trial *in camera* on the grounds that public proceedings might disclose a State secret or other classified information protected under Federal law (Article 241 § 2 of the Code of Criminal Procedure).

In 2010 the court found Mr Izmestyev guilty of the charges and sentenced him to life imprisonment. In 2011 the Russian Supreme Court set that judgment aside, retaining the life sentence. It dismissed the applicant's complaint on the lack of a public hearing.

Mr Izmestyev relies on Article 3 (prohibition of torture and inhuman or degrading treatment) as regards his conditions of detention in remand prison SIZO-2; Article 5 § 3 (right to liberty and security) as regards the length of his pre-trial detention; Article 6 § 1 (right to a fair trial) on account of the court's decision to consider the criminal case in private session; and Article 8 (right to respect for private and family life) in connection with restrictions on his family visits (a limited number of visits, a prohibition on telephone calls to friends and relatives, a lack of privacy and physical contact) and the 24-hour operation of a video camera in the cell in which he was detained in special-regime correctional colony no. IK-1 in the Mordovia region.

[Magnitskiy and Others v. Russia \(nos. 32631/09 and 53799/12\)](#)

The first application was lodged by Sergei Leonodovich Magnitskiy, born in 1972. After Mr Magnitskiy's death, the second applicant, Nataliya Valeryevna Zharikova, his wife, also born in 1972, continued the proceedings. She originally lived in Moscow with her husband but moved to London after his death. The second application was lodged by Nataliya Nikolayevna Magnitskaya, Mr Magnitskiy's mother. She was born in 1952 and lives in Moscow.

The case concerns Mr Magnitskiy's detention, his death in detention owing to an alleged lack of medical care, alleged ill-treatment, and his being convicted posthumously of organised tax evasion.

Mr Magnitskiy was the head of the tax practice at the Moscow legal and audit firm Firestone Duncan. Its clients included the Russian subsidiaries of the Hermitage Fund, at the time the largest foreign investment fund in Russia. Hermitage's Moscow office was headed by a US national, William Browder.

In 2007 a court order authorised a change in ownership of three Hermitage subsidiaries, with the new owners then applying for and being paid a tax refund of some 5.4 billion Russian roubles (approximately 145 million euros). Hermitage was not involved in this process and only found out about it through lawyers' letters.

Lawyers for the three subsidiaries accused officials from the investigation department of the Ministry of the Interior of fraud. They were alleged to have appropriated the subsidiaries' company seals and other documents during a separate tax investigation into a Hermitage client, Kameya, and to have carried out a fraudulent re-registration of the subsidiaries.

In February 2008 a special investigator of the Investigative Committee of the Prosecutor General's Office opened an investigation into Hermitage's allegation about the theft of the three companies. In June 2008 Mr Magnitskiy made statements to the investigator about the change of ownership and the tax refund, including alleged criminal misconduct and abuse of office by investigation department officials.

In July 2008 the head of the Investigative Committee of the Ministry of the Interior joined the Kameya case with three other cases of suspected tax evasion committed by a criminal group. Mr Magnitskiy was placed under arrest in November 2008 and was charged with two counts of aggravated tax evasion committed in conspiracy with Mr Browder.

Mr Magnitskiy was placed in pre-trial detention, which was extended several times, and was still in a remand prison when he died on 16 November 2009.

Prior to his death he had complained many times of ill-health. A prison hospital surgeon diagnosed cholelithiasis and chronic cholecystopancreatitis and prescribed drugs, an ultrasound examination and surgery. However, Mr Magnitskiy was moved to another remand prison, which, according to the applicants, did not have the necessary medical facilities for his condition and which repeatedly ignored his requests for treatment despite his being in severe pain.

Owing to a worsening in his condition, Mr Magnitskiy was ordered to be transferred to another facility, remand prison no. 77/1, for treatment, although the move was delayed for several hours. He was finally examined at that prison but while the doctor was writing her notes she found that he had begun to behave in an aggressive fashion. He was placed in handcuffs and an official report later stated that a rubber truncheon had been used. A civilian emergency psychiatric team was called out, but by the time they had been admitted into the prison Mr Magnitskiy had died.

The authorities carried out investigations, which, however, did not result in any criminal liability being established in respect of persons responsible for Mr Magnitskiy's detention and treatment.

The authorities pursued their investigation of Mr Magnitskiy after his death. In July 2013 he was found guilty in a posthumous conviction of leading tax evasion.

The second and third applicants rely on Article 2 (right to life) and 3 (prohibition of inhuman or degrading treatment), to complain that the authorities failed to provide medical care to Mr Magnitskiy and were responsible for his death. The third applicant complains that the investigation into his death did not meet Convention requirements.

Under Article 3, the applicants allege that the conditions of Mr Magnitskiy's detention in remand prison no. 77/5 from 2 December 2008 to 28 April 2009 were appalling. Under the same provision, the third applicant alleges that Mr Magnitskiy was ill-treated by prison guards in remand prison no. 77/1 on 16 November 2009, the day of his death, and there was no effective investigation into that.

The applicants complain about Mr Magnitskiy's detention under Article 5 §§ 1 (c) and 3 (right to liberty and security), in particular that there was no reasonable suspicion that he had committed a criminal offence and that the length of his detention breached the reasonable time requirement.

The second and third applicants allege that the criminal proceedings against Mr Magnitskiy and his posthumous conviction breached Article 6 § 1 (right to a fair trial). The third applicant complains that the conviction violated the presumption of innocence principle set out in Article 6 § 2.

[Rodionov v. Russia \(no. 9106/09\)](#)

The applicant, Igor Rodionov, died on 22 May 2018. His mother, Tatyana Rodionova, has requested a review of the 11 December 2018 judgment of the European Court of Human Rights in accordance with Rule 80 of the Rules of Court.

Mr Rodionov's mother points out that she is unable to obtain the enforcement of the judgment on account of her son's death. She submits that as his heir she should receive the amounts awarded to him in the December 2018 judgment.

The Court held in its judgment of 11 December 2018 that there had been a violation of Article 3 (prohibition of torture and inhuman or degrading treatment) of the Convention read alone and in conjunction with Article 13 (right to an effective remedy) on account of the applicant's conditions of detention in remand prison no. IZ-47/1 from 18 August 2006 to 1 October 2008 and from 23 March to 21 August 2009, the conditions in which he had been transported to and from the Kirovski District Court in St Petersburg and placed in a metal cage during the criminal trial, as well as the lack of effective domestic remedies in that regard. The Court further ruled that there had been a violation of Article 5 §§ 3 and 4 (right to liberty and security), Article 6 §§ 1, 3 (b) and (c) (right to a fair trial), Article 8 (right to respect for private and family life), read alone and in conjunction with Article 13 (right to an effective remedy), as well as Article 10 (freedom of expression) and Article 34 (right of individual petition). The Court also decided to award the applicant the sum of 12,700 euros (EUR) in respect of non-pecuniary damage and EUR 3,500 in respect of costs and expenses.

The Court will deal with this request for a review in its judgment to be delivered on 27 August 2019.

Thursday 29 August 2019

[Aguirre Lete and Others v. Spain \(application nos. 29068/17, 30460/17, 35242/17, 43543/17, and 43614/17\)](#)

The five applicants, Juan Luis Aguirre Lete, Julen Atxurra Egurrola, Iñaki Bilbao Beaskoetxea, Idoia Martinez Garcia and Fernando Silva Sande, are all Spanish nationals who were born in 1963, 1959, 1959, 1968 and 1954 and live in Zuera, Puerto de Santa Maria, Castellon, Pontevedra and Coruña (Spain) respectively. The case concerns the length of their prison sentences.

Courts in France sentenced the applicants to imprisonment for offences linked to the terrorist organisation ETA (the first four applicants) or the terrorist organisation GRAPO (the fifth applicant). The convictions, between 1994 and 2009, concerned offences committed in France between 1993 and 2003, and the sentences were served in that country.

Subsequently, the applicants were sentenced in Spain to a maximum of 30 years' imprisonment for offences committed prior to those of which they had already been convicted in France.

Between 31 October 2013 and 1 December 2014 the applicants requested that the duration of the sentences imposed by the French authorities and served in France should be considered as having run concurrently with the maximum prison term of 30 years determined in Spain. Their requests were dismissed by both the *Audiencia Nacional* and the Supreme Court. The Supreme Court held that since the publication of Organic Law no. 7/2014 of 12 November 2014 on the Exchange of Information from Police Records and the Acknowledgment of Criminal Judicial Decisions within the EU, which had been in force since 3 December 2014, the legislature had expressly ruled out any consideration of concurrence with sentences handed down in another member State for the purposes of determining the maximum duration of a prison term. The applicants then lodged an *amparo* appeal with the Constitutional Court. It declared the first four requests inadmissible on the

grounds that there had been no violation of fundamental rights, rejecting the fifth request as insufficient reasons had been provided for its constitutional relevance.

Relying on Article 7 § 1 (no punishment without law) and Article 5 § 1 (right to liberty and security), the first four applicants complain of what they see as the retroactive application of new Supreme Court case-law and about a new law which came into force after their convictions and which they consider extended the length of their prison terms. The fifth applicant relies on Article 7 § 1 of the Convention only.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 27 August 2019

Name	Main application number
Dzhamakhadzhiev and Others v. Russia	31143/11
Goncharuk v. Russia	58472/14
Khatuyeva and Others c. Russia	4310/10
Ozdoyev and Others v. Russia	9782/08
Vaneyev v. Russia	78163/13
Radovanović and Others v. Serbia	55003/16
Stevanović and Others v. Serbia	43815/17

Thursday 29 August 2019

Nom	Numéro de la requête principale
Vladimirov v. Serbia	53056/15

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.